

## RESIDENTIAL MANAGEMENT LEASE AGREEMENT

*\*The LANDLORD hereby lets to the TENANT/S who rents the PREMISES on the terms and conditions as set out in this AGREEMENT OF LEASE. (Hereinafter referred to as the LEASE.)*

### THE SCHEDULE

#### 1. LANDLORD DETAILS

##### 1.1. The lawful owner of the PREMISES or his/her duly authorized representative

|                                      |                                        |
|--------------------------------------|----------------------------------------|
| Full name/s of LANDLORD:             | Navin Indraj                           |
| ID / Passport / Registration number: | 740510 5163 087                        |
| Physical address (Domicile):         | 974 Olympus Drive / Faerie Glen / 0043 |
| Postal address:                      | 974 Olympus Drive / Faerie Glen / 0043 |

The LANDLORD/S confirms that he/she/it is duly authorised to sign this LEASE.

##### 1.2. The LANDLORD/S AGENT is Unicity Integrated Realty as represented by:

|                |                             |
|----------------|-----------------------------|
| AGENT name:    | Bernice Barnard             |
| Cell phone no: | 082 574 8138                |
| Email address: | bernice@unicityrealty.co.za |
| FFC:           | 0142030                     |

Referred to collectively as the AGENT. The AGENT's details:

|                   |                                              |
|-------------------|----------------------------------------------|
| Registered name:  | UNICITY REALTY (PTY) LTD                     |
| Reg no:           | 2025/121986/07                               |
| Telephone number: | 012 991 0399                                 |
| Agency FFC:       | F108555                                      |
| VAT no:           | 4770239616                                   |
| FICA no:          | ORG ID 34725                                 |
| Email address:    | arlene@unicityrealty.co.za                   |
| Physical address: | 974 Olympus Drive, Faerie Glen, Tshwane 0043 |

## 2. TENANT/S DETAILS

The person/s that hereby enter/s into a LEASE in respect of the PREMISES with the LANDLORD.

|                                      |                                                   |
|--------------------------------------|---------------------------------------------------|
| <b>Tenant 1:</b>                     |                                                   |
| Full name and Surname:               | Blessing Tshuma                                   |
| ID / Passport / Registration number: | 950517 5656 080                                   |
| Date of birth:                       | 24/07/1983                                        |
| Married (ANC/ICP):                   |                                                   |
| Email address:                       | bulesing10@gmail.com                              |
| Cell phone number:                   | 067 275 9057                                      |
| Physical address (Domicile):         | 106 Cerise / 6678 Ridge Close / Stone Gate Estate |
| Postal address:                      | 106 Cerise / 6678 Ridge Close / Stone Gate Estate |

|                                      |  |
|--------------------------------------|--|
| <b>Joint Tenant/Spouse:</b>          |  |
| Full name and Surname:               |  |
| ID / Passport / Registration number: |  |
| Date of birth:                       |  |
| Married (ANC/ICP):                   |  |
| Email address:                       |  |
| Cell phone number:                   |  |
| Physical address (Domicile):         |  |
| Postal address:                      |  |

## 3. SURETY DETAILS (DELETE IF NOT APPLICABLE)

The TENANT/S and any SURETY shall be jointly and severally liable for all amounts due in terms of this LEASE.

|                     |  |
|---------------------|--|
| First name:         |  |
| Last name:          |  |
| ID/Passport number: |  |
| Email address:      |  |
| Contact no:         |  |

## 4. OCCUPANTS

The person/s who are authorized to reside in the PREMISES, with the TENANT/S, during the term of the LEASE.

|                                 |                        |
|---------------------------------|------------------------|
| Name & surname: Blessing Tshuma | ID no: 950517 5656 080 |
| Name & surname: Mulalo Tshuma   | ID no: 970712 0451 084 |
| Name & surname:                 | ID no:                 |
| Name & surname:                 | ID no:                 |
| Name & surname:                 | ID no:                 |
| Name & surname:                 | ID no:                 |

**PLEASE note there is a maximum number of occupants allowed as per municipal by-laws.**

Total number of occupants:  Adults:  Children:

## 5. PREMISES TO BE LET

The residential PREMISES described below, to be leased to the TENANT/S by the LANDLORD.

|                               |                                                   |
|-------------------------------|---------------------------------------------------|
| Physical address:             | 106 Cerise / 6678 Ridge Close / Stone Gate Estate |
| Postal code:                  | 0159                                              |
| Garage and/or parking number: | Unit #106                                         |
| Electricity meter number:     | Impact Meters                                     |
| Reference number:             | Cerise / Tshuma                                   |

**5.1.** The LANDLORD hereby lets to the TENANT/S who rents the residential PREMISES as described above, subject to the terms and conditions as set out in this agreement of LEASE.

**5.2.** The TENANT/S may only use the PREMISES for private residential purposes.

## 6. TENANT COSTS

### 6.1. Rent, deposit and LEASE details

The agreed monthly rental amount, deposits, tenant fees and information regarding the term of the LEASE are set out below and in Annexure A, which forms part of this agreement. All amounts in this LEASE are reflected as **inclusive of value added tax (VAT)**.

|                                           |                                  |
|-------------------------------------------|----------------------------------|
| Monthly rental:                           | R 7 200-00                       |
| Damages deposit:                          | R 7 200-00                       |
| Utility deposit:                          | R                                |
| Monthly admin fee:                        | R80.70                           |
| Lease fee:                                | R1100.00                         |
| Pro-rata rental:                          | For _____ days at R_____ per day |
| Initial term of LEASE (number of months): | 12 Months                        |
| Commencement date:                        | 1 March 2026                     |
| End of initial term date:                 | 28 February 2027                 |

#### 6.1.1. Annual Escalation:

% on each anniversary of the commencement date, compounded unless otherwise negotiated by the LANDLORD. Should there be an increase in the amount of municipal rate, taxes or body corporate levies during the period of the LEASE, the LANDLORD shall be allowed to increase the amount of rent payable equal to the value of the increase. Should the LANDLORD wish to increase the rental as per the above he/she will give the AGENT written instruction to do so within 30 days of any increase coming into effect.

### 6.1.2. Rental payment should reflect in the AGENT's account by the first of every month:

Rental payment and other applicable charges must reflect in the AGENT's account by the first of every month as per clause 12.1 of this agreement. Should the TENANT/S or any person who purports to occupy the said premises through or on authority from the LANDLORD/AGENT, take early occupation of the leased PREMISIS by mutual agreement between the LANDLORD/AGENT and the TENANT/S, then all the terms and conditions of the written LEASE will come into force upon occupation of the premises by the TENANT/S.

### 6.2. Utility services to be paid by the TENANT/S:

In addition to the rental amount the TENANT/S shall be liable to pay on demand and upon receipt of an invoice, additional municipal/body corporate/service provider/utility charges as specified below. This includes any administrative/basic charges incurred during the period of this LEASE. All amounts will apply and be payable unless marked otherwise.

The TENANT/S shall pay same to the LANDLORD/AGENT/supplier and shall provide verifiable proof of such payment to the AGENT. Should an account not be received, the onus is on the TENANT to request any outstanding accounts.

**Accounts generated by third parties exempts the LANDLORD/AGENT and is in no way liable or responsible for the accuracy of any billing received from a third party. The LANDLORD will be liable for the levy (if applicable) and the rates account.**

| Utility service                                        | Yes/No | To be paid to: (Supply authority/Body corporate/AGENT/LANDLORD/Prepaid) |
|--------------------------------------------------------|--------|-------------------------------------------------------------------------|
| Electricity:                                           | Yes    | Impact Meters (012) 763-8200                                            |
| Water:                                                 | Yes    | Impact Meters (012) 763-8200                                            |
| Sewerage:                                              | Yes    | Impact Meters (012) 763-8200                                            |
| Refuse:                                                | No     |                                                                         |
| Security:                                              | No     |                                                                         |
| Fines:                                                 | Yes    | Supply Authority                                                        |
| Intercom:                                              | No     |                                                                         |
| Other (please specify):<br><u>Any Additional Fines</u> | Yes    | Supply Authority                                                        |

## 7. SUPPLIERS OF ELECTRICITY AND WATER

- 7.1. The TENANT/S shall be responsible for arrangements to obtain utility service connections to the PREMISES from the commencement date of this LEASE, unless prohibited from doing so by the supply authority in which case the LANDLORD would be obligated to ensure an account is procured.
- 7.2. The TENANT/S shall pay the supplier or entity as stipulated in clause 6.2 for all electricity, water, sanitation and refuse used on the PREMISES for the period of occupation. The TENANT/S must pay any connection fee and/or deposit that the supplier/LANDLORD/AGENT may request. The TENANT/S shall send verifiable proof of payment, every month, to the AGENT for all direct payments made to the supplier of services, electricity, water, etc. The TENANT/S will be liable for any fine, late payment fee or letter of demand cost generated by the Municipality or supplier.
- 7.3. Neither the LANDLORD, nor the AGENT guarantees that these supplies will be uninterrupted for the term of the LEASE as in the case of any outages that may be experienced. The AGENT will however not interrupt or interfere with these supplies during the period of the LEASE.

## 8. MUNICIPAL SERVICES IN THE CASE OF PRE-PAID METERS *(DELETE IF NOT APPLICABLE)*

- 8.1. The TENANT/S acknowledges that the supply of electricity to the PREMISES shall be on a pre-paid basis.
- 8.2. The TENANT/S shall be liable for all electricity charges and for electricity consumed from the PREMISES whilst the TENANT/S is in occupation thereof. The TENANT/S may purchase electricity tokens from the applicable vendor, in the manner advised by the AGENT.
- 8.3. The parties record that in respect of pre-paid meters for municipal services, the TENANT/S will be liable for all costs associated with such pre-paid meters and the consumption and any damages in respect of such pre-paid meters.
- 8.4. The TENANT/S indemnifies the LANDLORD/AGENT against any damages suffered as a result of any failure or interruption of any supplies to the PREMISES and the LANDLORD does not warrant that such supplies will be continued for the duration of the LEASE. The LANDLORD/AGENT undertakes to perform no act or omission to prejudice the continuation or resumption of such supplies.

## 9. CONSENT RELATING TO PETS AND ANIMALS

- 9.1. The TENANT/S is not allowed to keep any live mammals, reptiles, insects, birds, fish, crustaceans, amphibians or any other kind of animal on the PREMISES without prior written consent having been given by the LANDLORD/AGENT. Any consent given may be revoked at any time at the LANDLORD/AGENT's sole discretion.

## 10. RENTAL PAYMENT

- 10.1. The TENANT/S shall pay the rent and any other applicable charges payable in terms of this LEASE in advance to reflect in the AGENT's account on or before the **first day of every month**.
- 10.2. Monthly rent shall be paid free of any deductions, bank charges or set off, each month into the bank account as stipulated in this LEASE.

- 10.3.** The TENANT/S shall provide verifiable confirmation when a payment is made for the rental and/or any other payments to the AGENT in order to facilitate accurate allocation of such payment.
- 10.4.** The AGENT shall provide a receipt for the payment of any amount that the TENANT/S has paid. The LANDLORD/AGENT reserves the right to allocate any payments received to any indebtedness of the TENANT/S.
- 10.5.** The TENANT/S shall furthermore not withhold, set off or delay payment of any monies owed to the LANDLORD/AGENT in terms of this LEASE for any reason whatsoever.

## **11. DEPOSIT**

- 11.1.** Payment of the deposit, the first month's rent and fees as per Annexure A in respect of this LEASE, shall be due and payable by the TENANT/S upon signature of this LEASE, to the LANDLORD's authorized AGENT. The TENANT/S shall **not be given occupation of the PREMISES and keys will not be handed over until these payments reflect in the AGENT's account.**
- 11.2.** Deposits stipulated in Clause 6.1 shall be applied to the restoration of any damages caused by the TENANT/S when vacating the PREMISES, or to settle any outstanding payments due by the TENANT/S.
- 11.3.** The AGENT shall invest the deposit in an interest-bearing account with an authorized financial institution.
- 11.4.** The damages deposit will be increased annually in proportion to the rental increase. The TENANT/S shall pay the increased amount as a deposit top up in conjunction with the increased rental payment for that same month. The deposit top up will be added to the original damages deposit in the interest-bearing account.
- 11.5.** Regulation 34.2.1.9 Compliance – Tenant Entitlement to Interest;
- In accordance with Regulation 34.2.1.9 of the Property Practitioners Regulatory Authority (PPRA) regulations, the Tenant hereby expressly mandates the Agent and/or Landlord that any interest accrued on the deposit held in trust shall remain the sole property of the Tenant. The Agent shall ensure that the deposit is placed in an interest-bearing account and that the full amount of interest earned during the tenancy period is paid to the Tenant upon termination of the lease, together with the deposit, subject to any lawful deductions.
- 11.6.** The TENANT/S agrees that the deposit shall not be used for the last month's rental.
- 11.7.** Should the TENANT/S be in arrears the AGENT/LANDLORD may at any time utilize the deposit for any indebtedness of the TENANT/S. Any amount utilized is immediately payable in terms of the deposit requirements of this LEASE.
- 11.8.** The TENANT/S indemnifies the AGENT should the deposit be paid over to the LANDLORD on his/her instruction.
- 11.9.** Notwithstanding anything else contained herein, the LANDLORD may at his/her sole discretion accept a written guarantee instead of payment of the deposit or part thereof.

## 12. INTEREST ON OUTSTANDING PAYMENTS

Interest will be charged on any outstanding rent, deposits or other charges (as stipulated in Clause 6.1 and Annexure A), not received on the due date and payable by the TENANT/S to the LANDLORD/AGENT in terms of this LEASE, at the rate of 2 (two) percent above the prime interest rate and compounded monthly in advance, from the due date to the date the payment was made.

## 13. FIXTURES AND FITTINGS

**13.1.** The TENANT/S is not allowed to install or place any fixtures or fittings in/on the PREMISES without first receiving written permission from the LANDLORD/AGENT.

**13.2.** Should the LANDLORD/AGENT agree to the above, the TENANT/S shall remove these before the date of the outgoing inspection and the TENANT/S must repair the areas where his/her fixture/fitting was installed/placed at his/her own cost. The TENANT/S agrees to restore the PREMISES to the same condition that it was in at the beginning of the LEASE, less fair wear and tear.

**13.3.** Should the TENANT/S not remove his/her fittings and fixtures on or before the outgoing inspection, these shall become the property of the LANDLORD who will not have to pay any compensation to the TENANT/S.

**13.4.** The TENANT/S is not allowed to drive nails or any other objects into the walls or any other area without the LANDLORD/AGENT's **written permission**. Should the LANDLORD/AGENT agree to this, these nails or objects are to be removed and the areas repaired/repainted on or before the date of the outgoing inspection. Should such repairs not be of a suitable quality the LANDLORD reserves the right to have the damaged walls repainted to a color of his/her choice.

**13.5.** The TENANT/S may not make any alterations to the PREMISES without obtaining the LANDLORD/AGENT's written permission, which must be obtained in advance.

## 14. INGOING INSPECTION

**14.1.** The TENANT and the LANDLORD/AGENT must jointly inspect the property. A list of any defects must be recorded.

**14.2.** The PREMISES are let and rented in the condition in which it is at the beginning of the LEASE. **No obligations shall rest on the LANDLORD/AGENT to repair or improve any of the defects listed in the inspection report, unless specified as a special condition of the LEASE and signed by all parties.**

**14.3.** The TENANT/S agrees to conduct the ingoing inspection at the same time as the outgoing inspection of the party vacating the PREMISES if asked to do so by the LANDLORD/AGENT.

## **15. OUTGOING INSPECTION**

- 15.1.** On termination of this LEASE, the LANDLORD/AGENT and the TENANT/S will jointly inspect the PREMISES for any damages.
- 15.2.** The TENANT/S shall ensure that the PREMISES are vacant at the time of this inspection.
- 15.3.** The TENANT/S agrees to the new TENANT/S of the PREMISES being present at such outgoing inspection on request of the LANDLORD/AGENT.
- 15.4.** On expiry of the LEASE the TENANT/S shall hand over the keys of the PREMISES to the LANDLORD/AGENT by no later than 14h00 PM on the day of the termination date of the LEASE unless differently agreed to in writing by the relevant parties. Failure to do this will entitle the LANDLORD/AGENT to deduct from the deposit any damages suffered as a result of any loss of income. This may include the following month's rental subject to mitigation by the LANDLORD/AGENT.

## **16. INSPECTION OF PREMISES DURING THE LEASE PERIOD**

The LANDLORD/AGENT/contractor or inspector shall be entitled to inspect or carry out necessary work or repairs at all reasonable times. It is recorded that 24 hours is deemed to be an acceptable notice period unless the situation is an emergency. Should any appointments not be kept by the TENANT/S a fee equivalent to the charges that the contractor charged for the call out, may be charged to the TENANT/S. The TENANT/S is obliged to allow access during standard office hours.

## **17. LANDLORD'S MAINTENANCE OBLIGATIONS**

The LANDLORD/AGENT shall keep and maintain in good order and condition the PREMISES which includes the roof, gutters and drain pipes, but not the windows and doors of the PREMISES. In the case of a sectional title scheme, the body corporate shall be responsible for these.

## **18. DESTRUCTION OR DAMAGE**

- 18.1.** Should the PREMISES at any time during the LEASE be badly damaged or destroyed to the extent that the TENANT/S is not able to live in the PREMISES, then this LEASE shall automatically come to an end. The LANDLORD/AGENT and the TENANT/S shall remain responsible for his/her respective duties as stipulated in terms of this LEASE, up to such date that the LEASE has ended and neither party will have any further claim against the other.
- 18.2.** Should the PREMISES only be partly damaged, the terms and conditions of this LEASE shall remain effective and the LANDLORD/AGENT shall repair the damage, at his/her own cost, as soon as reasonably possible. The TENANT/S shall remain in the PREMISES and be granted a reduction of rent during the period in which the PREMISES are being repaired. The reduction in rental shall be agreed upon by the LANDLORD/AGENT and the TENANT/S or, if such agreement cannot be reached, an independent third party will be appointed to rule on the reduction.



- 18.3.** Notwithstanding Clauses 23.1 and 23.2 herein above, the LANDLORD/AGENT shall not be prohibited/prevented from having a claim against the TENANT/S if any destruction or damage to the PREMISES is due to the fault or due to neglect of the TENANT/S, a member of the TENANT/S's family or his/her visitors or any such other person that the TENANT/S might have reasonable control over.
- 18.4.** In the event of the TENANT/S having to vacate the PREMISES as a result of any fumigation being carried out, the cost of such vacating shall be for the account of the TENANT/S.

## **19. MAINTENANCE**

- 19.1.** The TENANT/S shall at his/her own cost during the LEASE period, keep the inside of the PREMISES as well as all fixtures and fittings in a good state of repair. At the end of the LEASE the TENANT/S shall return the PREMISES to the LANDLORD/AGENT in the same condition as it was at the beginning of the LEASE, less fair wear and tear.
- 19.2.** The TENANT/S will be held liable for any neglect to maintain the PREMISES as well as fixtures and fittings. The TENANT/S liability for neglecting to maintain the PREMISES will not be relieved even if there was no direct act of negligence or damage. It is the responsibility of the TENANT/S to ensure the PREMISES is reasonably maintained during the period of the LEASE.
- 19.3.** The TENANT/S is expected to properly maintain and where necessary repair and/or replace at his/her own cost any doors (including shower doors), door handles, locks and keys, window fasteners, electrical fittings and fixtures, bath, basin, sanitary ware, water taps, valves, burglar alarms, automated gates/garage doors, sprinkler system, pool pump, less fair wear and tear. When necessary, the TENANT/S shall also replace at his/her own cost any light bulbs, fluorescent tubes, starters, tap washers on the PREMISES.
- 19.4.** The TENANT/S shall replace and repair any damaged or broken glass or mirror regardless how the damage or breakage was caused.
- 19.5.** If the PREMISES is fitted with carpets, the TENANT/S will clean and maintain the carpets and other floor coverings in the PREMISES regularly. Should they be damaged by the TENANT/S or have worn beyond fair wear and tear during the period of the LEASE, these items will be replaced completely at the end of the LEASE at the TENANT/S's cost. The TENANT/S agrees to have the carpets professionally cleaned, at his/her expense, by a pre-approved contractor, immediately after vacating the PREMISES.
- 19.6.** If there is a garden, the TENANT/S shall be responsible for the maintenance and upkeep of the garden and shall return the garden in the same or better condition that it was in at the commencement of the LEASE. Should the garden need attention or plants need to be replaced at the end of the LEASE, this cost will be for the TENANT/S's account.
- 19.7.** If there is a swimming pool, the TENANT/S will be responsible for the maintenance and upkeep thereof. Should the pool need attention in any way at the end of the LEASE, this cost will be for the TENANT's account.

**19.8.** It is strictly recorded that the TENANT/S is liable for the cost of correcting, repairing and unblocking any blocked drain or septic tank regardless of the nature of the blockage for the duration of the LEASE or extension thereof. Should the TENANT/S not correct any blockage after a request is sent, the LANDLORD may at his/her sole discretion have the blockage attended to by a plumber and the bill will be immediately payable by the TENANT/S on presentation of the invoice.

**19.9.** The TENANT/S must report any additional defects not listed on the ingoing inspection within 7days of taking occupation of the property. This report must be emailed to the AGENT.

**19.10.** The TENANT/S will be held liable for any damages to the property that was not reported to the LANDLORD/AGENT in writing during the LEASE. This includes consequential damaged to the property.

## **20. INSURANCE**

**20.1.** The TENANT/S shall not do anything in or to the PREMISES to increase the premium that the LANDLORD pays for his/her insurance.

**20.2.** The TENANT/S is responsible for insuring his/her personal possessions brought onto the property. The LANDLORD/AGENT cannot be held responsible for any loss, theft or damage to the TENANT/S's property no matter how it was caused.

## **21. COMPLIANCE WITH LAWS AND RULES**

**21.1.** The TENANT/S occupants or visitors will be expected to follow all the municipal regulations, as well as any other provincial regulations, during the time of the LEASE in the PREMISES.

**21.2.** The TENANT/S occupants or visitors must obey the rules and regulations of the body corporate during his/her LEASE of the PREMISES together with the house rules. The AGENT will provide the TENANT/S a copy of the body corporate rules or house rules, however the TENANT/S undertakes to ensure they obtain a copy of the body corporate rules or house rules and these form part of this LEASE whether attached or not. *(DELETE IF NOT APPLICABLE)*

**21.3.** The TENANT/S occupants or visitors will not do anything in or on the PREMISES to create a nuisance, or cause damage or disturbance to the neighbors or their premises. Such nuisance will be considered a breach of the LEASE.

**21.4.** The TENANT/S acknowledges that he has received, read and understood the body corporate rules. *(DELETE IF NOT APPLICABLE)*

## **22. RENEWAL PERIOD**

**22.1.** The TENANT/S will be contacted not more than 80 (eighty) days, but not less than 40 (forty) days, before the end date of the LEASE about renewing the LEASE period. Any renewal of the LEASE will be negotiated between and agreed to by the LANDLORD/AGENT and the TENANT/S, which terms shall be reduced to writing.

- 22.2.** The TENANT/S will be held liable for the LEASE administration fee and any other applicable fee as stipulated in Annexure A for every new/renewed LEASE.
- 22.3.** After the initial term of the LEASE, the LEASE will automatically continue on the **same terms and conditions, but with a 2 calendar months' notice period** required by either the LANDLORD or the TENANT/S; unless the TENANT/S expressly directs the LANDLORD/AGENT in writing at the recorded domicile no less than **40 days** before the expiration of the initial term to terminate the LEASE.
- 22.4.** An escalation as stated above of the rental amount will automatically apply unless otherwise recorded above. Should the LANDLORD wish to terminate the LEASE at the end of the initial term, the LANDLORD/AGENT will provide notice to the tenant no later than **30 days** before the end of the initial period.
- 22.5.** Should the TENANT decide not to proceed to renew the LEASE, the TENANT shall give two (2) calendar months' notice to the AGENT in writing prior to the expiry of the LEASE.
- 22.6.** It remains within the LANDLORDS discretion to extend the LEASE of the initial period. Should the LANDLORD decide not to renew the LEASE, the LANDLORD will give the TENANT **two (2) calendar months' notice**.

### **23. SUBLETTING, CESSION AND ASSIGNMENT**

The TENANT/S is not allowed to sublet any portion of the PREMISES unless the LANDLORD/AGENT has given his/her permission in writing before the possible subletting.

### **24. SECURITY**

- 24.1.** The TENANT/S will take reasonable steps to make sure that the PREMISES are secure according to the LANDLORD/AGENT's instruction. The TENANT/S will be held responsible for ensuring that his/her visitors is made aware of these regulations.
- 24.2.** The TENANT/S must ensure that the burglar alarm or security system is not broken or damaged. Should the system not be in working order, the TENANT/S must immediately let the AGENT know of any break-in, burglary, trespass or any other crime that may happen on the PREMISES.
- 24.3.** The LANDLORD shall not be responsible for the maintenance and repair of the burglar alarm system to the property.

### **25. INDEMNITY**

The TENANT/S hereby indemnifies the LANDLORD/AGENT and holds them harmless for any loss/damage to property or injury to persons suffered on the PREMISES due to negligence.

## **26. REPAYMENT OF DEPOSIT**

- 26.1.** Should the TENANT/S owe no amounts of money to the LANDLORD/AGENT in terms of this LEASE, or for the cost of repair in terms of Clause 26, the LANDLORD/AGENT shall pay the full amount of the deposit, plus interest, to the TENANT/S within 7 (seven) days after the termination of this LEASE.
- 26.2.** Should the LANDLORD/AGENT deduct the reasonable cost of repairing damage to the PREMISES or for any monies owing by the TENANT/S from the deposit, the LANDLORD/AGENT shall pay the balance of the deposit (if any), plus interest, to the TENANT/S no later than 14 (fourteen) days after the restoration of the PREMISES. The receipts for the costs of repair/replacements will be sent to the TENANT/S for inspection, as proof of the amount that it has cost the LANDLORD/AGENT.
- 26.3.** If the TENANT/S does not attend the outgoing inspection, the LANDLORD/AGENT will inspect the PREMISES within 7 (seven) days from the termination date to note any damages which occurred during the LEASE period. The LANDLORD may deduct from the TENANT/S's deposit, and interest, the reasonable cost of repairing damage (if any) to the PREMISES and the cost of replacing lost keys and/or electronic devices. The balance of the deposit and interest thereon shall be refunded to the TENANT/S by the LANDLORD/AGENT no later than 21 (twenty-one) days after end date of this LEASE.

## **27. BREACH**

- 27.1.** If the TENANT/S does not pay any amount on the due date or should the TENANT/S breach any condition of this LEASE, the LANDLORD/AGENT will give the TENANT/S 7 (seven) business days' written notice to either pay the amount owed or to remedy the breach.
- 27.2.** If the breach is not corrected, the LANDLORD/AGENT will be entitled to take whatever lawful action is necessary without further notice to the TENANT/S.
- 27.3.** Should the CPA apply to this LEASE, the LANDLORD/AGENT may cancel the LEASE 20 (twenty) business days after giving written notice to the TENANT/S of a failure by the TENANT/S to comply with the LEASE, unless the TENANT/S has rectified the failure within that time.
- 27.4.** In the event that the TENANT/S is placed in breach of this LEASE AGREEMENT and remedies such breach on 3 (three) separate occasions, the LANDLORD shall be entitled thereafter to cancel this LEASE AGREEMENT on 20 (twenty) business days' notice to the TENANT. In such an event;
- 27.4.1.** the LANDLORD'S right to cancel in terms of this clause 27.4 shall exist regardless whether the TENANT/S remedies each breach prior to the expiry of each individual month within the 3 (three) month period contemplated above; and
- 27.4.2.** the provisions of this clause 27.4 shall apply during the initial period as well as any renewal periods to this LEASE AGREEMENT.

## **28. LEASE CANCELLATION FEES AND NOTICE**

- 28.1.** Notice in terms of the Consumer Protection Act (CPA): Should the LEASE be deemed to be subject to the CPA, the TENANT/S may cancel this LEASE by providing 20 business days' written notice to the AGENT. The LANDLORD shall however be entitled to claim 2 months' rental should a replacement tenant not be found for this 2 month period or part thereof.
- 28.2.** Should the TENANT/S cancel the LEASE at any stage during the initial LEASE term, in addition to any damages suffered by the LANDLORD, the TENANT/S will be held liable for the following reasonable cancellation costs to procure a new TENANT/S;
- 28.2.1.** The TENANT/S shall be held liable to pay the LEASE cancellation fee as per Annexure A as well as the costs outlined in Clauses 22.2.2 and 22.2.3 below.
- 28.2.2.** The TENANT/S shall be held responsible for reasonable advertising costs until such time as a new TENANT/S has been procured.
- 28.2.3.** The TENANT/S shall be held responsible for the AGENT's commission on the outstanding portion of the LEASE, at the commission rate which was agreed upon the LANDLORD's signature of the LEASE. Example; if the LEASE was for a period of 12 months and the TENANT/S cancelled the LEASE 6 months into the LEASE, the TENANT/S will be held responsible for the payment of the commission for the remaining 6 months.

## **29. CONSENT TO MAGISTRATES COURT JURISDICTION**

The TENANT/S agrees to the jurisdiction of a Magistrate's Court under Section 28 of the Magistrates Court Act 1944, should any legal case be lodged by the LANDLORD/AGENT in connection with this LEASE, provided that the LANDLORD/AGENT shall be allowed to take such a case to the High Court.

## **30. LEGAL COSTS**

Should the LANDLORD have to take legal action against the TENANT/S, the TENANT/S shall pay costs on an attorney-client scale, such costs to include collection of commission, VAT and tracing costs, or debt collector's fees and administration charges, or any other collection or commission charges.

## **31. ADDRESS OF THE TENANT/S (*DOMICILIUM CITANDI ET EXECUTANDI*)**

- 31.1.** The TENANT/S chooses the leased PREMISES, as his/her legal address where all correspondence will be sent for all purposes, including legal documents and the summons. It is recorded that the email address provided in the LEASE will be deemed to be an acceptable domicile.
- 31.2.** Any notice given by or to any party must be given in writing, sent by registered post or delivered by hand and given to a responsible person over the age of 16 or emailed to the party concerned. If notice has been given by registered post to the TENANT/S, it shall be deemed to have been validly given on the 4th (fourth) day following the date of posting thereof. All other forms of delivery will be deemed to have been received on the day the notice was delivered, including electronic mail.

## **32. TO LET AND FOR SALE NOTICES**

**32.1.** The TENANT/S shall give the LANDLORD/AGENT access to the PREMISES at all reasonable times and with reasonable notice, during the LEASE period or any renewal period for viewing of the PREMISES. The LANDLORD/AGENT may fix a To Let or For Sale sign during the last 3 (three) months of the LEASE.

**32.2.** The TENANT/S shall permit the LANDLORD or any estate agent authorized by the LANDLORD, to make the PREMISES available for viewings during the week and weekends, including after hours if proper arrangements is made and sufficient notice give to the TENANT/S. The TENANT/S will also make the PREMISIS available for a show house on 2 (two) Sundays or Saturdays per month between the hours of 14h00 and 17h00 during the period of 3 (three) months prior to the termination of this LEASE.

## **33. SALE OF PREMISES**

**33.1.** If the PREMISES are sold, the LANDLORD shall be deemed to have assigned his/her rights and obligations in terms of this LEASE and the Residential Management Mandate over to the Purchaser, and the TENANT/S shall continue to remain bound by the LEASE in all respects.

**33.2.** In the event that the TENANT or any co-occupant in terms of the LEASE AGREEMENT purchases the PREMISES during the duration of the initial LEASE, any renewal period thereof, or during a 12 month period after the termination of any LEASE, the AGENT (SHAPRI T/A UNICITY) shall be deemed to be the effective cause of sale and as such be entitled to AGENTS' commission on the sale of the PREMISES. The commission payable will be charged at 6% (plus VAT) of the gross selling price and is payable by the LANDLORD on transfer of ownership of the PREMISES.

## **34. PERSONAL INFORMATION**

The TENANT/S consents to the LANDLORD/AGENT accessing, storing, screening or processing its personal information, as defined in the Protection of Personal Information Act (POPI), which the LANDLORD/AGENT reasonably requires. This is subject to the LANDLORD/AGENT complying with all provisions of POPI.

## **35. PARTIES MARRIED IN COMMUNITY OF PROPERTY**

If any person signing this LEASE is married in community of property, both spouses must sign the LEASE AGREEMENT. The only exception is if an authorized Power of Attorney letter can be provided where the spouse has given written consent for the other spouse to sign without them.

## **36. TENANT/S WHO ARE FOREIGNERS**

If the TENANT/S is not a citizen or permanent resident of South Africa, he/she confirms that he/she (a) is not in the country in contravention of the Immigration Act 13 of 2002, and (b) has permission to be in the country for the period of this LEASE (including any renewal of this LEASE).

## **37. NO CHANGES**

No changes or agreed cancellation of this LEASE, shall be regarded as legally valid unless it is in writing and signed by both the LANDLORD and the TENANT/S.

**38. RELAXATION**

Any latitude, relaxation, indulgence or extension of time which may be allowed by the LANDLORD in respect of any matter or obligation that the TENANT/S is bound to perform or observe in terms of this LEASE, shall not under any circumstances be deemed to be a waiver of the LANDLORD's rights at any time. The LANDLORD is entitled, without notice, to require strict and punctual compliance with each and every provision or term herein.

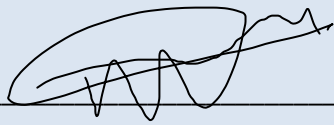
**39. SEVERABLE**

Should any clause or portion of any clause be deemed unenforceable, unlawful, void, or in contravention of any legislation such clauses or portion shall be severable and the remaining provisions shall remain in full force and effect.

**40. SPECIAL CONDITIONS**

*The TENANT/S states below, in his/her own handwriting, that the LEASE has been explained to him/her and that he/she has read and understood the terms and conditions of this LEASE and that this LEASE has been signed freely and voluntarily.*

Signed on the 06 of February 2026 at Home

Tenant 1:  
Name Tshuma Blessing Signature 

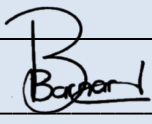
Joint Tenant/Spouse:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Signed on the \_\_\_\_\_ of \_\_\_\_\_ 20\_\_\_\_ at \_\_\_\_\_

Landlord 1:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Joint Landlord/Spouse:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Signed on the 6 of February 2026 at Amberfield Glen

AGENT Name Bernice Barnard Signature 



### ANNEXURE A - TENANT FEE SCHEDULE

|                                       |                                                   |
|---------------------------------------|---------------------------------------------------|
| Property Address:                     | 106 Cerise / 6678 Ridge Close / Stone Gate Estate |
| Tenant 1 name and surname:            | Blessing Tshuma                                   |
| Joint Tenant/Spouse name and surname: | N/A                                               |

| Fee specification:                               | Description                                                                                                         | Fee amount:      |
|--------------------------------------------------|---------------------------------------------------------------------------------------------------------------------|------------------|
| 1. Tenant application fee/lease fee (Individual) | Fee charged to generate the LEASE agreement & validate FICA documents                                               | R1100.00         |
| 2. Tenant application fee/lease fee (Juristic)   | Fee charged to generate the LEASE agreement & validate FICA documents                                               | R1500.00         |
| 3. Out inspection                                | Inspection to be done when a tenant moves out                                                                       | R405.00          |
| 4. Broken appointment fee                        | When a tenant is not at the premises for an appointment                                                             | R450.00          |
| 5. Cash deposit fee                              | Fee charged to recover cash deposit costs charged by the bank                                                       | 2.5% PLUS R25.00 |
| 6. Deposit release fee                           | To release a deposit from the trust account                                                                         | R175.00 per year |
| 7. Lease cancellation fee                        | Fee charged when a LEASE is canceled during the initial term of the lease; excluding the penalty in respect of rent | R1500.00         |
| 8. Lease admin renewal fee                       | Fee charged to update/draft a new LEASE agreement                                                                   | R990.00          |
| 9. Failed debit order fee                        | Fee charged to recover debit order return.                                                                          | R250.00          |
| 10. Late payment fee                             | When rental is paid late i.e., after date as stipulated in the lease agreement                                      | R250.00          |
| 11. Letter of Demand fee                         | When a LOD is generated due to a tenant defaulting                                                                  | R85.00           |
| 12. Tracing fee                                  | Fee charged for tracing an individual with a bureau                                                                 | R85.00           |

|                               |                                                                                           |         |
|-------------------------------|-------------------------------------------------------------------------------------------|---------|
| 13. Late renewal fee          | Fee charged (per day) for not signing renewal on time                                     | R25.00  |
| 14. Handover fee              | Fee charged for legal charges incurred when handing over a defaulting tenant to attorneys | R575.00 |
| 15. Credit Bureau listing fee | Fee charged when having to list a defaulting tenant with a credit bureau                  | R95.00  |

**\*All fees are inclusive of VAT**

The above fees will apply for the duration of the current LEASE and any extension or renewal thereof. The AGENT reserves the right to amend these fees on any LEASE renewals.

Kindly sign acceptance and understanding of this Annexure A – Tenant Fee Schedule

Signed on the 06 of February 2026 at Home

Tenant 1:  
Name Blessing Tshuma Signature 

Joint Tenant/Spouse:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Signed on the \_\_\_\_\_ of \_\_\_\_\_ 20\_\_\_\_ at \_\_\_\_\_

Landlord 1:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Joint Landlord/Spouse:  
Name \_\_\_\_\_ Signature \_\_\_\_\_

Signed on the 6 of February 2026 at Amberfield Glen

AGENT Name Bernice Barnard Signature 